

EQUAL OPPORTUNITY OR EQUAL SOCIAL OUTCOME?

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1 INTRODUCTION

John Rawls's work (1971) has greatly contributed to rehabilitating equality as a basic social value, after decades of utilitarian hegemony, particularly in normative economics, but Rawls also emphasized that full equality of welfare is not an adequate goal either. This thesis was echoed in Dworkin's famous twin papers on equality (Dworkin 1981a,b), and it is now widely accepted that egalitarianism must be *selective*. The bulk of the debate on 'Equality of What?' thus deals with what variables ought to be submitted for selection and how this selection ought to be carried out.

Two different kinds of selection appear in this field. First, the relevant individual *outcomes* have to be determined. A long-standing tradition in normative economics has taken subjective well-being to be the relevant individual outcome, but there are now many objections to this viewpoint (Rawls 1982, Dworkin 1981a, Sen 1985, Cohen 1989).

This first selection belongs to all individualistic theories of justice and is not specific to selective egalitarianism. What characterizes selective egalitarianism is an additional selection. Most authors proceed with this

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second selection as follows. Once the adequate individual outcome $\mathcal{O}$ is chosen from the first selection,¹ list all the factors $\alpha, \beta, \dots$ that influence the value of this outcome. Then sort out these factors into three categories. Put into category r (resources) the factors that social institutions and government can directly control. This mainly concerns the external resources that can be allocated and redistributed among individuals. The second category t (talents) gathers all the factors which are not under the control of social institutions, but which ought not to be simply assigned to individual responsibility. Think of biological and natural circumstances, irreducible social factors, etc. The remaining factors are put into a third category, w (will), that represents everything for which the individual is responsible. In other words, the individual outcome can now be written as a function of three variables $\mathcal{O}(r, t, w)$, and the egalitarian goal is to compensate for differential individual endowments in talents t by an appropriate allocation of resources r . By contrast, differences in wills w ought not to be compensated at all.

I propose calling *factor-selective egalitarian* any approach that adopts the above method and the above goal. In short, factor-selective egalitarianism identifies factors r , t and w , and seeks to compensate t differentials but not w differentials. The identification of r does not pose much of a problem, but there are many ways in which t and w can be distinguished, and there are also many devices for compensating t differentials. As a consequence both points bring about disagreement among the authors advocating factor-selective egalitarianism.

As far as the boundary between t and w is concerned, two main views compete. On the one hand, Rawls and Dworkin tend to put into w the personal goals and ambitions that the individuals identify with, reserving for t the resources and circumstances that help them to pursue these goals or hinder them from doing so. Actually Rawls prefers to de-emphasize the importance of personal talents and handicaps, postponing a full treatment of this topic until after a satisfactory theory of justice for equally talented individuals is elaborated. Then equality (or rather the maximin) of resources r obtains in Rawls's approach, and the compensation problem vanishes. This problem, by contrast, is central to Dworkin's thought.

On the other hand, Arneson (1989, 1990) and Cohen (1989, 1990), as well as Roemer (1993) and Sen (1985, 1992), argue for another cut between t and w . According to them, the talents should include all factors (apart from resources r) which are outside the individual's control, whereas all factors for which the individual can be deemed morally responsible, because she fully controls them, belong to the w heading. This new cut is orthogonal to the previous one, because the individual

¹ $\mathcal{O}$ may be vector-valued.

may not be totally responsible for her preferences and personal goals, and symmetrically she may bear some responsibility for internal means toward these goals.

Consider the method of compensation. Again two main approaches can be distinguished. The first one, exemplified by Rawls's and Dworkin's theories, but also by van Parijs (1990), directly tries to equalize the *extended bundles* (r, t) across individuals. There is no obvious way in which this can be done, except when t is nullified, as in Rawls's approximation. An important proposal consists in equalizing incomes on an extended market (with virtual trade of talents), and another one sets up a virtual insurance market for talents, again on an equal income basis (see Dworkin 1981b, Roemer 1985).

The second approach to compensation focuses not on bundles (r, t) , but on the *choice sets* of all the outcome levels that the individual can reach if she chooses her will w in a given set W_i . The objective is then to make all these sets equal across individuals, that is, to equalize opportunities. This second approach is taken up by Arneson and Cohen, Roemer and Sen.

It is natural that the authors diverge similarly on the two questions (where to locate the cut t/w ; how to compensate), because the choice set method of compensation almost automatically leads to sorting out factors, between t and w , depending on the degree of control the individual has over them. However, it would be possible to base the cut on control and responsibility while choosing the equal (r, t) approach rather than the choice set approach. But no author seems to have chosen this combination. It would also be possible, in fact, to choose something formally identical to the choice set approach without referring to control and responsibility in the t/w cut, and an example will be given in the next section.

We are then, in fact, left with only two main schools of factor-selective egalitarianism, the 'equal resources' school, which equalizes extended resources (r, t) and identifies w with the content of personal goals, and the 'equal opportunity' school, which equalizes choice sets and identifies w with the sphere of personal control and responsibility. Of course, significant differences exist between authors within each school, but this taxonomy is helpful for spotting the main issues.

In this paper I will argue that although the general selective egalitarian project is basically right, the factor-selective approach and especially its equal opportunity formulation are flawed. The equal opportunity approach is generally empty, inefficient, unfeasible, and it relies on a shaky sociological and philosophical basis. Many of these criticisms carry over to factor-selective egalitarianism in general. But I will try to show that, contrary to what is usually contended in the literature, the dismissal of the factor-selective egalitarian project does not

lead necessarily to either a restrictive resource-egalitarianism or to a comprehensive outcome-egalitarianism. Another way is indeed practicable, but with a completely different approach that is outcome-selective rather than factor-selective, and relies upon an alternative conception of responsibility.

Section 2 below provides a more precise definition of the equal opportunity approach. Section 3 identifies a separability condition which is presupposed by the factor-selective egalitarian project but which, in practice, is rarely satisfied. Section 4 shows that a basic requirement of factor-selective egalitarianism directly contradicts the Pareto principle. In Section 5, mutual interactions between individuals are shown to raise a difficulty for the choice set approach. In Section 6, miscellaneous criticisms of the sociological and philosophical implications of the equal opportunity project are put forward, and an alternative concept of responsibility is proposed. Section 7 makes use of this alternative approach to propose adopting outcome-selective egalitarianism instead of factor-selective egalitarianism. Section 8 presents a few final remarks.

In this paper, the first target of criticism will be the equal opportunity principle, but indications will be given on how far this also applies to the general factor-selective egalitarian project. It is convenient to deal with a particular approach first, because there is no full statement of factor-selective egalitarianism as such in the literature. And I focus on equal opportunity rather than equal resources because the former approach has been very clearly defined recently by Arneson and Cohen, and has apparently revived factor-selective egalitarianism, while the latter has no abstract definition (only specific mechanisms have been proposed) and its difficulties have already been extensively studied by Roemer (1985) and van Parijs (1990).

2. DEFINING EQUAL OPPORTUNITY

The equal opportunity authors do not agree on the nature of the adequate outcome $\mathcal{O}$ (Arneson proposes welfare, Cohen prefers advantage, which is close to Sen's functionings), and this issue will not be dealt with here. Arneson's first definition of equal opportunity (for welfare) goes as follows:

For equal opportunity for welfare to obtain among a number of persons, each must face an array of options that is equivalent to every other person's in terms of the prospects for preference satisfaction it offers ... Equal opportunity for welfare obtains among persons when all of them face equivalent decision trees – the expected value of each person's best (= most prudent) choice of options, second-best ... n -best is the same. The opportunities persons encounter are ranked by the prospects for welfare they afford. (Arneson 1989, pp. 85–6)

This definition might be understood as stipulating that $\mathcal{O}(r_i, t_i, W_i)$, that is, the range of possible outcomes an individual can reach by choosing w in W_i , must be the same for everybody. But this neglects the fact that the access to various wills may be unequal (a slight effort is more easily exerted than a heroic one). Such a definition would be compatible with the possibility for Smith to obtain a high outcome with a relatively weak will, while Jones would have to choose a strong will to get the same result. Arneson is fully aware of this fact:²

The criterion for equal opportunity for welfare stated above is incomplete. People might face an equivalent array of options, as above, yet differ in their awareness of these options, their ability to choose reasonably among them, and the strength of character that enables a person to persist in carrying out a chosen option. Further conditions are needed. We can summarize these conditions by stipulating that a number of persons face effectively equivalent options just in case one of the following is true: (1) the options are equivalent and the persons are on a par in their ability to 'negotiate' these options, or (2) the options are nonequivalent in such a way as to counterbalance exactly any inequalities in people's negotiating abilities, or (3) the options are equivalent and any inequalities in people's negotiating abilities are due to causes for which it is proper to hold the individuals themselves personally responsible. Equal opportunity for welfare obtains when all persons face effectively equivalent arrays of options. (Arneson 1989, p. 86)

For simplicity's sake, I will assume here that all individuals have the same degree of access to the same set of possible wills W . In other words, the parameter t captures all of the relevant factors which may influence the range or accessibility of the various ambitions and strengths of character for the individuals. Thanks to this assumption, the above definition simply implies that the individuals must be able to 'attain identical welfare levels with the same effort' (Arneson 1989, p. 84). The way this definition can be introduced into the set of notations proposed above seems therefore unambiguous.

An allocation of resources $(r_1, \dots, r_n)$ among the n individuals of society will be said to equalize opportunities if the choice sets $\{(\mathcal{O}_i, w_i) \mid \mathcal{O}_i = \mathcal{O}(r_i, t_i, w_i), w_i \in W\}$ for $i = 1, \dots, n$ are the same for all individuals.

In other words, considering that only w_i is under the responsibility of individual i (r_i is allotted by the equalizing mechanism, and t_i by uncontrolled forces), the value of individual outcome she can reach for any choice w_i is the same as for any other individual. Contrary to what happens with r and t , there is no scarcity or fixity constraint on the individual 'wills', and it is quite possible, and probably desirable, that the

² See also Arneson 1990, pp. 176–8.

individuals choose comparably 'good' wills, so that their resulting outcomes will be equally good. If, however, some individuals choose a bad or inadequate will, they are to blame and their resulting poor outcome does not require any correcting policy.

Notice that the formal definition of the equal opportunity principle does not rigorously imply any mention of responsibility or choice. As a matter of fact, its purpose is only to neutralize the effect of certain variables on the individual outcomes, in order to make these outcomes reflect other variables only. For instance, a school system may try to reveal the intelligence and effort of the pupils, while neutralizing the impact of their social background on their marks. This is a direct application of the equal opportunity principle as formalized above, although one can hardly claim that the pupils have some responsibility over their innate part of their intelligence. The specificity of Arneson's and Cohen's theses is that they advocate the equal opportunity principle on the grounds of responsibility, and locate the relevant cut between 'neutralized' and 'revealed' variables at the boundary between non-responsibility and responsibility.

3. A SEPARABILITY REQUISITE

The principle of equalizing the choice sets $\{(\mathcal{O}_i, w_i)\}$ across the individuals is not a trivial matter, and apart from obvious problems of information and manipulation, one may wonder if the mere existence of an allocation achieving such an equality does not require some conditions on the function $\mathcal{O}$ itself. In a model in which the allocation $(r_1, \dots, r_n)$ must satisfy a resource constraint $\sum_{i=1}^n r_i = \bar{r}$, $\bar{r}$ denoting the total amount of available resources, this turns out to be the case, since it can be shown³ that equal opportunity will be nonempty in general only if the function $\mathcal{O}$ can be written

$$\mathcal{O}(r, t, w) = \mu(\nu(r, t), w)$$

This separable form defines a bundle of extended resources $\nu(r, t)$, and the outcome $\mathcal{O}$ is then only a function μ with two arguments, the bundle ν and w . This bundle ν is precisely what has to be equalized across individuals under equal opportunity. Indeed, equal opportunity amounts to equalizing the functions $\mu(\nu(r_i, t_i), \cdot)$, which itself requires equalizing $\nu(r_i, t_i)$. In other words, the equal opportunity principle does not solve the problem of aggregating external resources and internal resources; instead, it implicitly assumes it to be solved.

Separability says that the trade-off between r and t is independent of w . For example, the amount of extra income that compensates for i 's blindness should not depend on what effort i exerts. If ten per cent more

income makes blind i as well off as sighted j , when i and j make little effort in their lives, then ten per cent more income must make blind i as well off as sighted j , when the behavior of both is more ambitious.

This result raises the question of whether the separability condition

$$\mathcal{O}(r, t, w) = \mu(\nu(r, t), w)$$

is likely to be satisfied in the actual world. There is a particular class of cases in which separability is bound to hold, namely, when the resource r and the talent t have the same nature and are additive. Think of the weight of competitors in a race: it is very easy to load the lighter ones with weights so as to equalize their total weights $\nu = r + t$. Another example is the compensation of inherited wealth inequalities through money transfers.

But outside this particular class, and noticeably in cases concerning social equality in a broad sense, it is quite difficult to imagine general reasons why the required separability should be satisfied, as the above example of blind i and sighted j suggests.

The same conclusion holds when the Dworkinian approach is adopted and the variable w represents the individual preferences and ambitions. The separability condition then means that all of the individuals should have the same preference preorderings over the pairs (r, t) , a very stringent requirement. Indeed, agent i prefers (r, t) to (r', t') if $\mu(\nu(r, t), w_i) > \mu(\nu(r', t'), w_i)$. And if μ is monotonic in its first argument, this latter inequality is independent of w_i , which implies that all of the other agents will prefer (r, t) to (r', t') , too.

An escape from the separability condition might seem possible when resources can be adjusted *ex post* to the wills of the agents. We could then have functions $r_i(w_i)$, and each function $r_i(\cdot)$ could be chosen so as to satisfy the condition $\mathcal{O}(r_i(w_i), t_i, w_i) = \theta(w_i)$, for some function θ . The trouble is that the resource constraint $\sum_i r_i(w_i) = \bar{r}$ implies that all functions r must be constant (change only one w_i to show that r_i must be constant), so that we are back within the above framework, and the separability condition is unescapable. Nonetheless, if the scarcity constraint $\sum_i r_i(w_i) = \bar{r}$ does not apply, for instance in the case of non-economic goods (such as power, status, rights and duties etc.) it is indeed possible to obtain equal opportunity even without separability, by *ex post* adjustment of r . But this leads to another problem. For instance, we can give the individuals a status of master or slave depending on their good will. But this leaves open the question of the location of the threshold of good will, or equivalently, of the best proportion of masters and slaves in society; the equal opportunity principle can then be satisfied in societies with very different degrees of inequality. The equal opportunity principle, in that case, does not provide a complete theory of equality.

The separability problem concerns the choice set approach itself and

not only its ‘responsibility’ version. But does this problem affect the general factor-selective egalitarian project? Assume we face a society in which the individual wills are already fixed and known, and we seek to compensate the individuals for their t but not for their w . Assume also that the t ’s and w ’s can be ranked so that it makes sense to say that i has a ‘greater’ talent or a ‘better’ will than j , so that $\mathcal{O}$ is increasing in its three arguments: more resources, more talent and better will, all increase the outcome. This assumption will be retained until the end of this section.

In view of the factor-selective egalitarian project, two natural goals seem desirable. Firstly, *the resources r should be negatively related to the talents t* . Indeed, if r_i and t_i are both greater than, respectively, r_j and t_j , it seems hard to qualify the negative $r_j - r_i$ as a ‘compensation’ for the handicap of low t_j . Secondly, *the outcomes $\mathcal{O}$ should be positively related to the observed wills*. Otherwise, if $\mathcal{O}_i$ is less than $\mathcal{O}_j$ although w_i is greater than w_j , this means either (if t_i is less than t_j) that i has not been really compensated for her low talent t_i , or (if t_i is greater than t_j) that j is compensated not only for her relative handicap t_j , but also, seemingly, for her low will w_j . Let us state these two requisites formally:

RT (more Resource for less Talent): $\forall i, j, \ r_i \geq r_j \iff t_i \leq t_j$

OW (better Outcome for better Will): $\forall i, j, \ \mathcal{O}_i \geq \mathcal{O}_j \iff w_i \geq w_j$

Now, if the function $\mathcal{O}$ does not display the separability condition, these two requisites are likely to be incompatible. Consider the following example. $\mathcal{O}$ denotes school results, r the amount of educational resources, t the children’s social background, w their effort. Assume $\mathcal{O}(r, t, w) = r + t/w + w$. For $t < w^2$, $\mathcal{O}$ is increasing in its three arguments. But in this function, a high level of effort helps mitigate the negative impact of a low social background, which violates the separability condition. Four pupils are in the class: Ann, Bob, Chris and Dave. Their social background and observed effort are displayed in Figure 1.

<i>Pupils</i>	t	w
Ann	−4.00	3.5
Bob	−3.50	2.0
Chris	+1.25	1.5
Dave	+1.50	4.0

FIGURE 1

In this table, the alphabetic order also corresponds to the social ranking (from poor to rich). On this example, a quick computation shows the following property:

$$r_A \geq r_B \geq r_C \geq r_D \iff \mathcal{O}_B < \mathcal{O}_C \quad \text{or} \quad \mathcal{O}_A > \mathcal{O}_D$$

In other words, if one makes sure that more educational resources go to the poorer pupils, either Chris will do better than Bob, or Ann will do better than Dave, although they are lazier. Conversely, if one makes sure that the lazy pupils do not overtake those who work harder, a poorer pupil will receive less resources than a richer one, a rather unsatisfactory situation. The two above requisites are incompatible.

The reader will have noticed that one needs at least four individuals to produce such an example, and whereas equal opportunity implied separability even with two individuals, the factor-selective egalitarian project, if it involves only the above two requisites, begins to run into trouble only when $n \geq 4$. Moreover, one can find plenty of cases involving large numbers of individuals, in which the two requisites are compatible. But it turns out that the separability condition becomes progressively more necessary as the size of the population increases.⁴

To what degree or in what way must RT or OW be weakened in order to be compatible in the absence of separability? Two criteria seem to involve a minimal relaxing of RT and OW.

The first one can be derived from Roemer (1993). This criterion relies on the selection of a reference will $\tilde{w}$, and yields an allocation which equalizes $\mathcal{O}(r, t, \tilde{w})$ across individuals. Thus there is a given outcome $\tilde{\mathcal{O}}$ which everybody can attain with the 'normal' or 'reference' will $\tilde{w}$. The resulting allocation still satisfies the inverse relationship between resources and talents (RT), but the second requisite (OW) is satisfied only in the following weakened way. An individual will do better than the reference outcome $\tilde{\mathcal{O}}$ if she chooses a better will than $\tilde{w}$, and she will end up worse off than the reference outcome if she chooses a will below $\tilde{w}$. In other words, this criterion splits the population into the lazy and the hardworking individuals, and ensures that the latter will do better than the former, but can offer no such guarantee within each class.⁵ This criterion can also be described as selecting a 'representative agent', whose will becomes the reference will, and as enforcing an allocation such that everybody can obtain the same bundle of will and outcome as the representative agent. If $\mathcal{O}$ is a utility function, one can also say that, in the chosen allocation, the representative agent is indifferent to everybody else's bundle of extended resources (r, h) .

The second criterion, which appears as dual to the previous one, is the egalitarian-equivalent criterion (Pazner and Schmeidler, 1978), which selects a reference bundle $(\tilde{r}, \tilde{t})$, and yields an allocation such that for each

⁴ See Fleurbaey (forthcoming), Theorems 3.1 and 3.2

⁵ In fact, this criterion is the only one which satisfies RT and this weakened form of OW, under a consistency assumption (Fleurbaey [forthcoming], Theorem 4.2).

individual i , $\mathcal{O}(r_i, t_i, w_i) = \mathcal{O}(\tilde{r}, \tilde{t}, w_i)$. One checks that such an allocation still displays a positive relationship between will and outcome (OW), but weakens the other requisite (RT) in the following way. An individual will receive more resources than $\tilde{r}$ if her talent is less than $\tilde{t}$, and less resources than $\tilde{r}$ in the opposite case. This criterion splits the population into the handicapped and the talented, and provides the former with more resources than the latter, but does not preclude perverse situations within the two classes.⁶ It can also be described as selecting a 'representative agent', whose talent becomes the reference talent $\tilde{t}$, and as enforcing an allocation such that every individual i obtains the outcome the representative agent would get with i 's will. If $\mathcal{O}$ is a utility function, it can also be said that, in the chosen allocation, everybody is indifferent to the representative agent's extended resources $(\tilde{r}, \tilde{t})$.⁷

4. THE IMPOSSIBILITY OF A PARETIAN FACTOR-SELECTIVE EGALITARIAN

The factor-selective egalitarian project is definitely non-welfarist,⁸ and, as a result, the fact that it may violate the most basic welfarist principle, namely, Pareto efficiency, should not come as a surprise. But this deserves to be examined in a little more detail, because one has to assess whether such violations are warranted or not.

The problem arises from the first of the above requisites (RT), which stipulated a relationship between resources and handicaps. We will be concerned in this section with a weaker version of it, which can be named ERET, that is, 'equal resource for equal talent':

$$\text{ERET: } \forall i, j, t_i = t_j \Rightarrow r_i = r_j$$

An allocation $(r_1, \dots, r_n)$ is strongly Pareto optimal (or efficient) if it is impossible to find another feasible allocation that will improve some individuals' outcomes without making those of some other agents worse. It is weakly Pareto optimal if it is impossible to improve all of the individual outcomes simultaneously.

If r is one-dimensional (real number), and if $\mathcal{O}(\cdot, t, w)$ is increasing in r for all (t, w) , then any allocation such that $\sum_{i=1}^n r_i = \bar{r}$, where $\bar{r}$ is the aggregate amount of available resources, is strongly Pareto optimal. No problem arises in such a context.

Now, consider the case when r is still one-dimensional, but $\mathcal{O}(\cdot, t, w)$

⁶ This criterion is the only one which satisfies OW and this weakened form of TR, under a consistency assumption (Fleurbaey [forthcoming], Theorem 4.2).

⁷ The choice between Roemer's criterion and that of Pazner and Schmeidler depends on the importance one gives to RT and OW. Roemer's criterion also has the advantage that the allocation can be chosen *ex ante*, before the wills are fixed by the individuals.

⁸ 'Non-outcomist' would be more appropriate, since $\mathcal{O}$ is not necessarily welfare.

may be constant in r for some values of (t, w) . Then ERET is generally incompatible with strong Pareto optimality, because it may imply that some resources should be given to someone whose outcome is indifferent to those resources, while someone else could benefit from them. If $\mathcal{O}(\cdot, t, w)$ may be increasing or decreasing in r , depending on the value of w , for a given t , then ERET is incompatible also with weak Pareto optimality.

Another interesting general case is when the resources r are multi-dimensional. To simplify matters, remove the previous difficulties by taking the function $\mathcal{O}(\cdot, t, w)$ to be increasing and strictly quasi-concave in r (a usual convenient assumption in consumer preference theory). Should ERET still apply and dictate a uniform allocation even when the individual preferences differ? This seems odd at first glance, but I see no alternative. Consider the case when $\mathcal{O}$ is a utility function, and there is no parameter w , that is, when there is no reason why the outcomes should differ. The individuals will therefore be entirely compensated. Combined with Pareto optimality this requirement then implies, in view of the convexity of preferences, that two individuals with identical preferences (t) should receive the same bundle of resources. ERET is then a consequence of Pareto optimality (with equal outcome)! If one drops ERET when a parameter w is introduced, this means again that w seems to matter more than it should.

Do these incompatibilities lead us to a criticism of ERET, and through it of factor-selective egalitarianism, or to a criticism of the Pareto principle itself? The Pareto principle has been directly or indirectly the target of many sensible anti-welfarist criticisms (and also of a few welfarist ones), and it is now widely admitted that it must be used with some caution. The proposal which will be made at the end of this paper will also violate the Pareto principle in some circumstances, and it would thus be unfair to argue against ERET on the grounds of such a violation. But the problem here is that the violations described in this section seem highly questionable.

Factor-selective egalitarianism, insofar as it implies ERET, leads to the following dilemma. On the one hand, it seems natural to hold the individuals responsible for the most volatile and fanciful traits of their personality, and this means that the allocation of resources should not take those parameters into account. On the other hand, for the sake of efficiency it is appealing to adapt the allocation of resources to these particular parameters when this does not raise any crucial social problem.

Most authors, following Rawls and Dworkin, implicitly or explicitly assume a market economy, and seem to think of a requirement of 'equal income for equal talent', instead of 'equal resource for equal talent'. When equal opportunity is enforced, should not we allow the individuals to trade their endowments in a competitive market? According to a well-

known theorem of economics, a competitive market leads to Pareto-optimality. However, it would be naive to believe that this provides an easy solution to the above dilemma. First, what matters ethically in this setting is the final physical allocation, and the use of market trading does not remove the contradiction that the allocation should, and at the same time should *not*, depend on parameters for which the individuals are responsible. Second, not all cases offer the possibility of market devices as the school example demonstrates.

Besides, in terms of physical allocation, the principle, 'equal income for equal talent', displays a very specific pattern of preference rewarding. For given talents, it rewards the individuals who have 'cheap' preferences, that is, depending on the context, either those who have eccentric preferences or, on the contrary, those who have conformist preferences (see Fleurbaey 1992). It is not obvious at all that this particular reward pattern is desirable in all cases. One might instead want to reward those who, for instance, have specific preferences (for example, those who are industrious). A market allocation with 'equal income for equal talent' is therefore certainly not a non-questionable solution, although it is defensible.

At any rate, the market solution creates mutual influences between people's choice of preferences, since an agent's choice of preferences influences the equilibrium prices, and then alters the extent to which the preferences of another agent can be satisfied. Now, this kind of cross influence between several agents' wills and outcomes raises a serious difficulty for the choice set approach, and this is the topic of the next section.

5 EXTERNALITIES AND THE CHOICE SET APPROACH

The equal opportunity advocates implicitly refer to the model of a race in which every runner follows his own track.⁹ Unfortunately for the equal opportunity principle, but fortunately for the human condition, the race model is not accurate. Many interactions between individuals and between groups entail that responsibility, choice and consequences are shared in various and complex ways.¹⁰ The equal opportunity principle requires that all these intricate interactions should be sorted out, which is generally impossible.

This argument can be made more precise within the formal framework introduced above. For simplicity's sake, let us assume that there are no talents and handicaps, so that only external resources r and personal wills w need to be taken into account. And let us consider a population with only two individuals. But if we introduce a direct influence of the

⁹ See Okun 1975, Chapter 3.

¹⁰ A similar point is made in Nagel 1991, p. 72.

other agent's will over any individual's outcome, individual i 's outcome now depends on j 's will as well: $\mathcal{O}(r_i, w_j, w_i)$.

If the total resource $\bar{r}$ must be distributed before the individuals choose their wills, the allocation $(\bar{r}/2, \bar{r}/2)$ seems the only acceptable one. Does it provide 'equal opportunities' to the individuals? It probably does in a sense¹¹, but the problem is that *ex ante* we cannot identify individual i 's choice set $\{(\mathcal{O}_i, w_i) \mid \mathcal{O}_i = \mathcal{O}(r_i, w_j, w_i), w_i \in W\}$, since his choice set depends on the unknown value of j 's will. The choice set definition of equal opportunity finds a major obstacle here. Moreover, if the individuals choose different wills, their choice sets will be different *ex post*. If one agent chooses a more helpful will than another agent, she can complain that *ex post* her opportunities are fewer than the other's.

If the resources can be redistributed *ex post*, are we then able to find a better way of equalizing opportunities? For instance, once (w_1, w_2) is given, the allocation (r_1, r_2) could be chosen so that:

$$\mathcal{O}(r_1, w_2, \cdot) = \mathcal{O}(r_2, w_1, \cdot)$$

(and $r_1 + r_2 = \bar{r}$). Obviously this would in general only be possible under a separability condition similar to that pointed out in Section 3. But the main flaw in this solution is that the opportunities are only virtual. If an individual changes his will, then the allocation is no longer adequate. In other words, the function $\mathcal{O}(r_i, w_j, \cdot)$ is not really available to agent i , because r_i will be changed as soon as he changes w_i . If one computes the real choice set that this solution gives to an agent, for a given value of the other's will, then one finds again that the two agents' choice sets differ as soon as their wills differ.

Once resources are adjusted *ex post*, one must in fact consider them as a function of the profile of wills and examine the agents' choice sets in such a light. We will see that in some cases it is in fact possible to obtain equal and independent *ex ante* choice sets with such a method.

The idea is to look for a function $r(\cdot, \cdot)$ such that for any pair of wills (w_1, w_2) , one would have $r(w_1, w_2) + r(w_2, w_1) = \bar{r}$ and:

$$\mathcal{O}(r(\cdot, w_2), w_2, \cdot) = \mathcal{O}(r(\cdot, w_1), w_1, \cdot)$$

A remarkable consequence of this approach is that it leads to a complete separation of the agents' fates, so that their choice sets can in fact be defined *ex ante*. Indeed, for a given (w_1, w_2) let the function $\theta_{w_1, w_2}(\cdot) = \mathcal{O}(r(\cdot, w_2), w_2, \cdot) = \mathcal{O}(r(\cdot, w_1), w_1, \cdot)$. By considering one of these two terms alternatively, it turns out that the function θ_{w_1, w_2} is the same function θ for any pair (w_1, w_2) . The choice set of each agent is then simply $\{(\mathcal{O}_i, w_i) \mid \mathcal{O}_i = \theta(w_i), w_i \in W\}$. Agent i 's choice set no longer depends on j 's will. An additional interesting point about this approach is

¹¹ See, e.g., the concept of 'liberty potential' in Kolm (1993).

that the function θ cannot be arbitrarily chosen, and it is easy to check that only one such function is possible:

$$\theta(w) = \mathcal{O}(\bar{r}/2, w, w)$$

That is, each individual is given the outcome that she would obtain with her per capita share of the resources if the other agent had the same will as her own. This solution is not empty if the outcome function can be written $\mathcal{O}_i = \mu(\tau_i + \nu(w_j), w_i)$. Indeed, the function r which satisfies the above properties is then $r(w_i, w_j) = \bar{r}/2 + \nu(w_i) - \nu(w_j)$. In that case, the choice sets offered to the individuals are well defined *ex ante* and are equal. The adjustment of resources neutralizes the cross influences of the individuals' wills on their outcomes.

But this solution is not available in general, for any outcome function $\mathcal{O}$. And the requirement on function $\mathcal{O}$ seems even stronger than the separability property studied in Section 3 (although the exact formulation of the necessary conditions for the present context remains to be studied).

When the outcome function does not make this solution available, one can think of a weakened solution similar to Roemer's solution defined in Section 3. The idea would be to have a function r such that at least for a reference will $\tilde{w}$ a reference outcome level is guaranteed to the individuals:

$$\mathcal{O}(r(\tilde{w}, w_2), w_2, \tilde{w}) = \mathcal{O}(r(\tilde{w}, w_1), w_1, \tilde{w}) = \mathcal{O}(\bar{r}/2, \tilde{w}, \tilde{w})$$

When the function $\mathcal{O}$ is strictly increasing in r , this condition fully determines $r(\tilde{w}, \cdot)$, as well as $r(\cdot, \tilde{w})$ (by the resource constraint), but leaves some degree of freedom concerning the values of the function r outside this domain.

6. RESPONSIBILITY REVISITED

In this section the focus will be on the equal opportunity principle in its responsibility-based version. A series of specific objections will be given, followed by an alternative proposal concerning the use of the concept of responsibility. This proposal will then be developed in the next section.

The first problem is that the philosophical basis of the equal opportunity principle is very fragile. By setting the cut between choice and involuntary circumstances, Arneson and Cohen bring to the fore a distinction which is highly problematic from a philosophical standpoint, and which many authors, including Dworkin, try to avoid.¹² Obviously, this approach 'lands political philosophy in the morass of the free will problem' (Cohen 1989, p. 935). But Cohen continues: 'We may indeed be

¹² Although Dworkin's distinction between 'brute luck' and 'option luck' comes dangerously close to the same idea

up to our necks in the free will problem, but that is just tough luck. It is not a reason for not following the argument where it goes' (p. 935). It seems to me that, at the very least, this point is nonetheless a serious handicap for the equal opportunity approach. As far as the application of the principle is concerned, we are left with two options. Either we wait for the free will issue to be settled by metaphysicians, although there is little hope that this will be done in the near future.¹³ Or we allow political institutions to intervene to decide what factors the individuals are responsible for.¹⁴ The trouble with this latter option is that the ethical value of the chosen allocations is then undermined, since it is almost certain that political decisions will not correctly address the metaphysical issue, and thus will not identify the true responsibility of individuals. Due to the complexity of the idea of responsibility, political institutions, lacking precise guidelines, are in danger of being influenced by social and cultural prejudices. History has revealed too many examples of the dangers of basing political decisions on fragile theological or metaphysical principles. Hence, it is unlikely that the result of a political selection of the factors for which individuals are held responsible would be even an approximate implementation of the equal opportunity principle.

Let us assume for a moment that this problem can be solved in one way or another, and that equal opportunity is tentatively enforced by adequate institutions. There may still be doubt about some individual's responsibility. In such a case, where does the burden of proof lie? Assume it lies on the responsibility side, that is, only when the individual's responsibility is proved must he bear the consequences of his decisions. If an incompatibilist view of free will were adopted, then any suspicion that there is causality would become a suspicion of nonresponsibility, and would lead to an egalitarian compensation. Now, in modern societies, determinism in human behavior occupies an important position in the *Weltanschauung* of most intellectuals and probably a large part of the population.¹⁵ This implies that in any practical application the equal opportunity institutions would face a suspicion of nonresponsibility. As a result, it is likely that any application of equal opportunity based on an incompatibilist (not just a hard determinist) view of free will would amount to equalizing outcomes.

On the other hand, a compatibilist view of free will may raise another difficulty. The ethical appeal of the thesis that individuals must live with the consequences of their responsible acts, may not be completely independent of the concept of free will that is employed. In particular, the

¹³ The philosophical debate on free will is not even so much on whether there is free will or not as on what free will means (see, e.g., Van Inwagen 1983; Kane 1985). That it might be a self-contradictory notion is also a plausible thesis (Double 1991).

¹⁴ This idea is defended by Roemer (1993).

¹⁵ This is what Scanlon (1988) calls the Causal Thesis. See Scheffler 1991.

compatibilist project is mainly to justify attitudes of praise or dispraise (if not blame). To justify differences in welfare or in social success is quite another matter. Even if a compatibilist account may provide grounds for moral attitudes of praise and dispraise, it is more questionable whether it could justify differences of welfare or advantage between people. The presence of an identified deterministic factor explaining a person's behavior gives her very good arguments for complaining about any penalty in welfare or advantage imposed by equal opportunity institutions, or symmetrically, seriously undermines any claim to preferential treatment yielding a higher outcome. In brief, the equal opportunity approach faces a sort of dilemma: its ethical appeal is stronger with an incompatibilist view of free will than with a compatibilist one, but the doubt problem is then also more acute.

Now, even if we believe in a view of free will and moral responsibility justifying differential outcomes, our moral intuition can run into conflict with the principle of equal opportunity, as Bert's case should show. Bert has received a normal and balanced upbringing, but he has freely adopted a negligent and reckless character. In particular, he enjoys having his hair blown by the wind when he rides his motorbike on the highway, and he seldom wears a helmet even though he has one and it is compulsory to wear it. One morning he takes out his motorbike to pay a visit to his parents, and, on leaving them, spurns his mother's warnings about the helmet, saying: 'I prefer to take the risk and enjoy the wind!' But on this particular morning, Bert's careless driving causes an accident, in which he suffers serious head injuries. The hospital diagnoses a trauma which requires a costly operation Bert cannot afford because he has no health insurance. He will die if nothing is done.

In this case, the equal opportunity principle would not endorse any transfer of resources to help Bert. He is fully responsible for his injury. 'When persons enjoy equal opportunity for welfare ... any actual inequality of welfare in the positions they reach is due to factors that lie within each individual's control. Thus, any such inequality will be nonproblematic from the standpoint of distributive equality' (Arneson 1989, p. 86). I hope Bert's example will make it clear how the word 'any' can be frightening in this last sentence. If you freely and deliberately make the slightest mistake that can put you in a very hazardous situation, a society complying with equal opportunity will quietly let you die. If Bert had lost a finger, most people would probably think that he deserved it; but fewer people would agree with the 'no transfer' verdict in the above case. It is not only whether Bert is responsible or not which matters, but also the amount of welfare loss he is about to suffer following his mistake. Admittedly, his punishment is indeed proportional to the degree of risk he has chosen, and he had envisioned the possible consequences of what he did and could have taken precautions against

them. However, I believe that our ethical intuition may lead us to consider that the scale of penalties must not be so harsh. It seems that however criminal and stupid his behavior may have been, there is a limit to the kind and amount of suffering he should endure. Our society cures its criminals when they are injured, because this kind of physical penalty is not considered appropriate. In the light of this example, the equal opportunity principle looks rather primitive.

Cohen is as severe as Arneson, and the following passage shows it, but also suggests a defense of equal opportunity: 'When deciding whether or not justice (as opposed to charity) requires redistribution, the egalitarian asks if someone with a disadvantage could have avoided it or could now overcome it. If he could have avoided it, he has no claim to compensation, from an egalitarian point of view'. (Cohen 1989, p. 920; see also p. 940) The defense of equal opportunity one could imagine from this passage is that what motivates a transfer to Bert is not an egalitarian justice standpoint, but either charity (as opposed to justice) or non-egalitarian justice considerations. I think such a defense would be very weak. To put the boundary between justice and charity at this point is merely a restatement of the equal opportunity principle, not an argument for it. Cohen's distinction between justice and charity is moreover highly questionable in itself. This kind of opposition was similarly exploited by Nozick (1974), for example, to vindicate a rejection of egalitarian transfers while agreeing with spontaneous charitable gifts. But charity considerations can become a topic of distributive justice if a community makes them a matter of public policy. It is obviously a matter of egalitarian distributive justice that the satisfaction of basic needs should be given priority in the distribution of resources. It is this idea that supports the thought that Bert should be helped.

Let us assume that after his accident, Bert understands the foolish nature of his previous behavior. Let the individual who emerges from this understanding be called Bert II, as opposed to the negligent Bert I. If life could be lived again, Bert II would amend some of Bert I's decisions, including the driving behavior and the helmet wearing. The question is: should Bert II bear all the consequences of Bert I's follies? Again, the equal opportunity principle is dreadfully categorical on this issue. 'People share equal opportunity for welfare just in case there is some time at which their opportunities are equal and if any inequalities in their opportunities at later times are due to their voluntary choice or differentially negligent behavior for which they are rightly deemed personally responsible' (Arneson 1989, p. 86). In simpler terms, the decisions you make now may condemn you for the rest of your life. Again, although this approach is perfectly coherent, I argue that it may shock our moral intuition. The change of personality and the fact that the new individual would not make the same decisions call for a revision of

the penalty.¹⁶ Possibly suspecting this problem, Arneson (1990, p. 179) looks for a mysterious 'canonical moment' which separates childhood (age of nonresponsibility) from adulthood (age of responsibility). But there is no such canonical moment, and we must face this important anthropological fact that a human being is in a constant process of evolution and education. Even if one thinks that Bert II is still responsible for what Bert I did, it is not obvious that Bert II should be punished and suffer for something he would not now do. Does this objection simply demand a slight modification of the equal opportunity principle to allow for 'sincere conversions'? The problem is deeper. The constant evolution of a person, be it smooth or sometimes sudden, dilutes the moral responsibility for her actions over time, so much so that the principle of equal opportunity should take that into account in its basic formulation. I would propose that at every moment m , you should face the welfare prospects (after transfer) that you would face if you had in the past made the decisions that at m you would be inclined to make if you were to live again all your life up to m . Obviously, however, this idea seriously complicates the already impossible implementation of equal opportunity!

The equal opportunity principle cannot simply guarantee equal opportunities of expected welfare in the beginning of life, and must allow for correcting transfers after accidents and unpredicted random factors that affect the individual's prospects. Otherwise, it could not be true that 'any inequalities in their opportunities at later times are due to their voluntary choice or differentially negligent behavior' (Arneson, 1990, p. 179). Now consider a person whose expected welfare drops suddenly because of an unforeseen adverse random circumstance. He or she is clearly not responsible for this fact and, if the above argument is correct, will receive a compensatory transfer. But assume that if this random accident had not occurred, this person would have voluntarily taken a course of action leading to the same bad outcome. It is then less obvious that he or she still deserves to be compensated. One can consistently claim that such hypothetical actions are irrelevant, and that equal opportunity only analyzes actual events and their causes. But our ethical intuition may ask more. Imagine that a person is about to voluntarily drop his money into the river, but, one second before he does so, a sudden gust of wind snatches it out of his hands and deposits it in the water. A strict application of equal opportunity would compensate him, but is this a satisfactory solution? In order to avoid this kind of result, the

¹⁶ 'When some convict is now less closely connected to himself than at the time of his crime, he deserves less punishment. If the connections are very weak, he may deserve none' (Parfit 1984, p. 326). It is a matter of fact that the punishment of criminals is commonly affected by their behavior after their indictment (during the trial as well as in jail), and by what this behavior reveals of the evolution of their personality. Again the equal opportunity principle looks more primitive than the current penal system.

equal opportunity principle ought probably to contain a clause like this: after an accident affecting the welfare prospects of the population, compensatory transfers ought only to bring the individuals back to the levels that they would have had but for the accident. The complexity of the equal opportunity principle seems unbounded.

There are further practical problems. In face of the free will problem, Cohen offers a 'reassuring point'. We are not looking for an absolute distinction between presence and absence of genuine choice. The amount of genuineness that there is in a choice is a matter of degree, and egalitarian redress is indicated to the extent that a disadvantage does not reflect genuine choice. That extent is a function of several things, and there is no aspect of a person's situation which is wholly due to genuine choice' (Cohen, 1989, p. 934). This hardly sounds reassuring for the equal opportunity principle.¹⁷ Imagine the debates in the Ethics Committee which would have to set the kind and cost of medical care that a person in Bert's situation would be allowed to receive free of charge, depending on her degree of responsibility ... If a matter of degree is introduced, issues of quantities will be raised, and this is an additional problem rather than a reassuring point.

Confronted with the question of the informational difficulties implied by the equal opportunity principle, Arneson (1989, p. 87) suggests that, although obviously the outcome function is not known, and neither its shape nor the list of its arguments will ever be accessible, we have evidence of its gross features. This evidence enables us to apply equal opportunity in an approximate way. Equal opportunity is the ideal toward which we should direct our efforts. But this approximation method makes sense only if there is some continuity in the process, that ensures that any refinement of our knowledge of the outcome function and its arguments can lead the actual allocation of resources closer to equal opportunity. However, nothing is less plausible. The structure of the equal opportunity principle is such that, whenever there is some imperfection in the information about the outcome function or the observed variables, the allocation chosen to implement a gross equal opportunity can be quite far from the ideal allocation. If one discovers some event in Bert's childhood which explains his negligent attitude, the size of the transfer made to him will be increased dramatically. If afterwards one finds out that a gene in his DNA should have helped him correct this problem, the transfer will be taken away. And so on.

Being very fragile in its theoretical basis, completely untractable and substantially undesirable, the equal opportunity principle suffers from the drawbacks of the concept of responsibility it relies upon. Is this just

¹⁷ 'Hi! I'm from the Ministry of Equality. If, by any chance, you are unusually unhappy today, you will receive an allowance of $x\%$ of what would compensate you if you can prove that you are less than $(100 - x)\%$ responsible.' See Cohen, 1989, p. 910.

'tough luck'? Is there no other acceptable solution between a restrictive resource-egalitarianism (equal r 's) and a comprehensive outcome-egalitarianism (equal O 's)? It seems to me that most of the arguments and intuitions put forward by factor-selective egalitarians, and in particular the proponents of equal opportunity, can be salvaged and used in a more tractable way if one acknowledges the twofold meaning of the concept of responsibility.

In ordinary language, the word 'responsibility' is used in (at least) two different contexts. You can be 'responsible' for your act, and this is the meaning exploited by the equal opportunity approach. But it is also said that some issues, such as the furniture in your house or the way your children are raised, or national policy if you are chief of government, are your 'responsibility'. In social life, decision-making responsibility over all the facts and things that have to be decided is distributed to various agents: individuals, groups, organizations. Every individual takes part in a variety of such decision processes, and this delineates his or her area of responsibility. Contrary to how it may appear at first glance, decision-making responsibility does not have anything to do with free will. This is a purely descriptive concept that is used to describe how a society allocates the power of decision to its members, and no particular explanation needs to be given of how and why specific decisions are made. A hard determinist view of the world would not remove the fact that the way I dress is my own daily responsibility. Probably my choice is influenced by many factors, including the remarks of my fellows, but whatever happens at the moment I pick my clothes from the closet, I remain, from the viewpoint of society, the decision maker in this domain. This is simply what this concept of responsibility means. It involves an idea of authority as well as an idea of obligation or duty.¹⁸

Now, this second concept of responsibility may capture some of the intuitions that motivate selective egalitarianism, and on this basis a different criterion can be proposed. This is the topic of the next two sections.

7. OUTCOME-SELECTIVE EGALITARIANISM

Given the flaws of factor-selective egalitarianism, I propose directing our attention to morally relevant aspects of outcomes. The idea is the following. Factor-selective egalitarianism considers a comprehensive individual outcome O , identifies all the factors that affect this outcome $O = O(\alpha, \beta, \dots)$, and sorts these factors into three categories: r , t and w . This approach may be appropriate for a lot of practical competitive problems, from sport to trade regulations, but, as shown above, it is not

¹⁸ The idea of duty also leads to a third use of the word, as in the phrase 'responsible behavior'.

satisfactory as far as global issues of distributive justice are concerned. In this latter field, my proposal would be to draw a list of all relevant outcomes which depict an individual's fate (health, living standard, education level, career, family life, sense development, preference satisfaction, cheerfulness, etc.). $\mathcal{O}$ becomes a vector $(\mathcal{O}_\alpha, \mathcal{O}_\beta, \dots)$, whose components are the various outcomes, which may also be identified with Sen's notion of 'functionings' (Sen 1985). Then, for each of these outcomes or functionings, it must be decided what decision centers (government, local authorities, associations, family and friends ... and last but not least, the individual herself) should assume some responsibility for the achievement obtained by the individual. 'Responsibility' is here understood in its second meaning, and no idea of moral desert is involved. Now, the particular responsibility of social institutions would be to achieve equality across individuals, in the outcomes for which these institutions are responsible.

In short, I propose shifting from factor-selective to outcome-selective egalitarianism. And to make a very crude but convenient simplification, let us assume that only two decision centers are distinguished, society and the individual. Then the components of $\mathcal{O}$ would fall into two categories $\mathcal{O} = (\mathcal{O}_1, \mathcal{O}_2)$. The first one would include all of the outcomes for which society assumes some responsibility, and the second-type outcomes would be left to the entire responsibility of the individual and his circle of close relatives. A society based on this outcome-selective egalitarianism would design a set of institutions aiming at equality in the outcomes of the first category, and the outcomes of the second category would be disregarded in this respect. The designers of such egalitarian institutions would probably be given some way of aggregating the various outcomes which are under the (partial) responsibility of society: if a unique index φ existed, these institutions would seek to equalize $\varphi(\mathcal{O}_1)$ across the individuals. But it is very likely that such an aggregation would be difficult or even undesirable. This is not a serious handicap as long as the inequalities are substantial enough to make the direction of required change obvious. When it is not obvious, this probably means that the inequalities are so minor that the equalization itself loses its importance.

In other words, in this simplified but convenient framework, a boundary would be drawn between individual outcomes submitted to egalitarian care, and individual outcomes of purely private interest. Let us call 'social outcomes' the individual outcomes of the first type, that is, the components of $\mathcal{O}_1$, and 'private outcomes' the components of $\mathcal{O}_2$. The precise location of such a boundary may partly be a matter of public debate. An intermediate degree of responsibility might also be assumed by society with respect to some private outcomes. For these outcomes society would not guarantee equality, but would only check that their

individual levels belong to some defined interval. The level they have within the interval would be a private matter, but they would give rise to social concern as soon as they move outside the bounds of the interval. That may happen for instance in the enforcement of Mill's proviso discussed below.

At first glance, this general proposal might seem compatible with the equal opportunity principle and the notion of responsibility it conveys. The private outcomes could be those that individuals genuinely control, whereas social outcomes could be those for which the individuals cannot be held responsible (first sense). In other words, responsibility in the first sense might be a precondition for granting responsibility in the second sense to an individual. This idea, however, cannot be accepted for at least three reasons. First, a factor-based selection and an outcome-based selection are totally different. An outcome-selective egalitarian principle does not use any information concerning the causes of the individuals' behavior or results.¹⁹ Indeed, I propose equalizing social outcomes independently of the degree of control the individuals have, and disregarding private outcomes even if inherited handicaps affect individuals in this respect. The second reason is the following. Were such information available, it would not make sense to examine whether an individual is responsible (first sense) or not for an outcome. Responsibility in the first sense only concerns factors, that is, contributions to outcomes, but not the outcomes themselves. If $O = O(x, y)$ and I control only x , I cannot be held responsible for the outcome O , but only for the factor x . If y is fixed and I change x , then I may be held responsible only for the variation of O . But I cannot take responsibility (first sense) for O in general, whereas I can be given full responsibility over O in the second sense. Bert is not morally responsible for his health in general, but only for his peculiar behavior. Therefore it is impossible to select private outcomes on the basis of individual responsibility (first sense). The third reason is that what motivates the proposal of giving a sphere of personal responsibility (second sense) to individuals within the outcome-selective framework has nothing to do with genuine control and free will. This point is developed below.

A very obvious practical drawback of equal opportunity is that it requires that all facilities and subsidies devoted to helping particular handicaps or expensive activities should distinguish between the beneficiaries depending on whether they have genuinely chosen this handicap or activity, or have inherited it by chance. Mecca pilgrims would have to declare the origin of their faith, and those who have converted to Islam knowing the cost of travel to Mecca would pay full fare. The community

¹⁹ More precisely, it needs only to know the impact of r over O so as to compute the adequate allocation, but it need not make any distinction of the t/w type.

photography facility would refuse access to those who have genuinely chosen to practice photography. Such a system is not only practicably impossible, but looks ethically questionable. Should the fact that a person has 'genuinely' chosen to become a Muslim or a photographer imply that he ought to be excluded from the social help given to other Muslims and photographers? The principle of equalizing social outcomes is much more reasonable in this respect, since it would oppose any filtering in such circumstances.

The advocates of equal opportunity are very concerned with the possible exploitation of egalitarian institutions by individuals squandering social resources. This possibility is real, and an egalitarian society cannot look upon such practices without doing something. But the response should not be to punish the culprits by simply refusing them any further help. It would be more appropriate to implement safeguards (for example, vouchers may be a safer means of aid than cash), education and incentives, in order to make wasteful behavior less easy or less desirable.

For most social outcomes, the individual makes the essential contribution and social institutions simply play the role of a safety net. Equality of social outcomes may remove a part of individual incentive, but four channels of incentives remain. First, equality should in fact be interpreted as maximin, and contrary to pure egalitarianism, maximin precludes redistribution schemes which induce destructive behavior lowering everybody's outcome. Second, it is likely that the safety net will be quite global and not just for each detailed outcome. For instance, if I want a high income I must earn it, because social help will not bring my income up to the level I desire. Third, there exist incentives for cooperation that do not fit the homo economicus model, although, empirically, they prove to be quite strong, and an egalitarian social environment may help individuals to develop cooperative behavior. Fourth, private outcomes (like pride, happiness) may be influenced by the contribution of the individual to his or her own social outcomes. The possible inequality in those outcomes leaves room for direct individualistic incentives.

Does the outcome-selective approach escape from the problems of factor-selective egalitarianism and equal opportunity described in Sections 3 through 5? No separability condition emerges from the idea of equalizing social outcomes. If, for instance, there is some influence of $\mathcal{O}_1$ (or its factors) over $\mathcal{O}_2$, this does not raise a problem because $\mathcal{O}_2$ is not supervised by the social institutions. Concerning the incompatibility between ERET and efficiency, the idea of individual responsibility over personal tastes, in the second sense of 'responsibility', is naturally compatible with the idea of freedom to trade goods in order to adapt the allocation to personal tastes: the precise bundle consumed by a person

may be under her responsibility as well as her own tastes. At least, it would not make any sense to stipulate that, because the personal tastes belong to O_2 , the allocation of resources should not be adapted to them. Finally, externalities and interactions between individuals' actions and outcomes do not raise any particular problem for an outcome-selective approach.

The fundamental question of why some outcomes should be private and should not be taken care of by social institutions remains to be addressed. In this respect, Scanlon's Tanner Lectures²⁰ suggest an appealing answer. Scanlon detects in the use of the word 'choice' an ambiguity similar to that in the word 'responsibility'. Choice may denote either a past act or a range of opportunities. It may be important to give people a substantial amount of choice (= responsibility, second sense), without their particular act of choice implying any moral desert (= responsibility, first sense). The fact that some outcomes should be private, then, stems from the fact that it is essential to preserve a substantial degree of choice and autonomy in individuals' lives. 'Just institutions must make outcomes depend on individuals' choices because of the importance which individuals reasonably attach to this dependence. . . . The value of choice is not a purely instrumental value. People reasonably attach intrinsic significance to having outcomes depend on their choices' (p. 189). The intrinsic 'value of choice' can then be a basis for a distinction between social and private outcomes. If a comprehensive outcome such as welfare or advantage were systematically equalized by society, the individuals would lose their autonomy in spheres such as preference formation and satisfaction, subjective happiness, etc.²¹

²⁰ Scanlon, 1988.

²¹ Scanlon actually proposes this 'value of choice' approach as an alternative to what he calls the 'forfeiture view', which is very close to the equal opportunity principle. However, two points may be worth mentioning. First, his criticism of the 'forfeiture view' is rather weak, and unfortunately relies on the assumption that only conscious choice morally matters in that view, whereas Arneson's equal opportunity principle allows for negligent behavior to be penalized as well. Second, he applies the 'value of choice' approach to cases of hazard warning in an unpalatable way. He argues that people who do not take account of warnings and suffer damages should not be rescued, because by warning them we have put them in sufficiently good conditions of choice. Such a view is in fact compatible with equal opportunity and the 'forfeiture view', but not, I believe, with the 'value of choice' approach or equal social outcome. Because the choice which is offered in this example is not, as Scanlon says, the 'good' choice of avoiding damage by following the warning advice, but the 'bad' choice of either avoiding damage or suffering damage, which is not the kind of choice that has to be promoted. As Scanlon admits, 'one would prefer to eliminate these outcomes altogether if that were possible' (1988, p. 190). Moreover, the individuals suffering damage have a reduced range of opportunities in their life, afterwards, due to diminished health and life expectancy. If choice and opportunities must be promoted and equalized, these individuals need some help. Their past act is irrelevant for the 'value of choice' approach.

The 'value of choice' approach is helpful in clarifying some important details of the equal social outcome principle. First, it supports the above remark that it may be desirable that individuals' initiative make a substantial contribution to the social outcomes they achieve. The social institutions must deprive individuals of as little autonomy as possible, and only take care of inequalities in final outcomes. Second, even if a global composite outcome is equalized, it may be crucial that individual choice should prevail in determining in detail how the components of the global outcome are filled for everybody (the global outcome is 'social' while it consists of a set of private outcomes). Third, in all domains, including private choices, it is the responsibility of social institutions to fight against undesirable influences and to provide the individuals with good conditions for choice. The purpose is not to make sure that choices are genuine and that agents are morally responsible for them (first sense), but instead to enhance choice as a factor of quality of life for all individuals.

A second reason for the selection of private outcomes is that a private sphere must be preserved from any public scrutiny and social intervention. In particular, the basic liberties of thought, speech and movement imply that the outcomes directly concerned with thought, speech and movement should not elicit any intervention. One can probably go further, although maybe not as far as J. S. Mill, who qualified as private all the acts concerning only the self (Mill 1910; Riley 1989). On the other hand, Mill's proviso concerning a possible harm to others should probably be retained. If some private outcomes may be harmful to other persons, then some measures of social prevention should be adopted. For instance, the way I dress is my responsibility, but some eccentric options might be harmful in some ways to other persons in society, and it may then be reasonable to put some limits on the extent of my authority in this respect.

A defense of privacy on slightly different grounds is put forth by Rawls (1982). A complete equalization of an overall outcome such as welfare or advantage would rely on an ordering of individual outcomes which would not fully respect the independent and incommensurable values of the different goals and life plans of the individuals. This idea is related to the well-known 'bare persons' objection, but we need not go as far as discussing the monist eudemonistic feature of equal welfare, for instance, as Rawls does. In order to defend the principle of a private sphere, all that is necessary is that a comprehensive assessment of a person's success in life should not be made from the central viewpoint of social institutions. Only a partial and basic assessment should be performed at this level, and the rest belongs to individual goals and particularities. This is a third reason for putting some outcomes into the private sphere.

A fourth reason is also proposed by Rawls. The means available to individuals, and their achievements, should not be held up by the unreasonable demands of others. In particular, 'strong feelings and zealous aspirations for certain goals do not, as such, give people a claim upon social resources, or a claim to design public institutions so as to achieve these goals. Desires and wants, however intense, are not by themselves reasons in matters of justice' (1982, p. 171). A natural way to protect the individuals from such unreasonable demands is to give all of them responsibility over their own goals and degree of satisfaction.

The distinction between private and social outcome might help understand an apparent contradiction that Cohen finds in Rawls's theory. On the one hand, Rawls defends the idea of primary goods on the grounds that people are partially the masters of their preferences: 'The use of primary goods ... relies on a capacity to assume responsibility for our ends' (Rawls, 1982, p. 169). On the other hand, Rawls objects to rewarding effort and desert because 'the effort a person is willing to make is influenced by his natural abilities and skills and the alternatives open to him. The better endowed are more likely, other things being equal, to strive conscientiously, and there seems to be no way to discount for their greater good fortune' (Rawls, 1971, p. 312). Cohen notices that this suggests a double standard in the treatment of responsibility. A partial responsibility in tastes, according to Rawls, entails no compensation (as if people had a one hundred per cent responsibility), whereas a partial responsibility in effort would lead to a total compensation (as if people had a zero per cent responsibility). Maybe in Rawls's mind, the idea was mainly to make the allocation of primary goods independent of both effort and tastes because in both cases we are unable to determine the degree of genuine personal choice. But in view of the above arguments, another interpretation is possible. There is no reason to subsidize particular tastes insofar as this remains a private matter, that is, they typically belong to the domain of individual responsibility. In contrast, some of the rewards that a person might receive due to her effort are likely to fall into the cluster of social outcomes. And the principle of making social outcomes depend on genuine personal choice (as opposed to circumstances) is much more problematic than the principle of making private outcomes depend on personal choice. A society which does not directly intervene to counter the deterministic factors influencing private outcomes is simply a society which respects privacy. Whereas a society which sets out to distinguish circumstances and choice in order to allot social rewards will run into all the troubles described in the previous section.

In addition to the 'value of choice' and the privacy arguments, there might be other reasons for putting some personal outcomes into the private cluster. For instance, height is usually considered a private

outcome in our society. An individual who happens to be rather small, or rather tall, can obtain no compensation for this (within certain limits of size). However, this is an outcome that individuals can hardly modify, so that choice (genuine choice or Scanlon-type choice) cannot justify this fact. And individuals are seldom indifferent about their size; it affects their welfare and advantage (some jobs even require a particular size). Nonetheless, I doubt that this situation should be deemed socially unfair, and it is not clear that we would like equality in this outcome (a uniform size for all individuals in the population) or compensation for this by other means. The same could probably be said about beauty, intelligence, etc. In conclusion, there may exist outcomes that are relatively important for the welfare of individuals even though their unequal distribution is not in itself a matter of social justice.²² A possible reason for this fact might be a concern to respect the person. A direct social valuation of the individual's physical features or characteristics would undermine her self-esteem, and a principle for a just society might be that such differences between individuals do not matter in themselves. From the standpoint of justice, they matter only insofar as they impair the performances of individuals in their participation in social life.

We must then take issue with the claim that if hard determinism is adopted, full equality of welfare or advantage must ensue. None of the five above arguments is affected by hard determinism. The existence of a private sphere is desirable independently of the free will issue. Outcome-selective egalitarian institutions provide no compensation for any brute bad luck affecting an individual's private outcome, but this is not as harsh as it may seem. Either we simply do not care about inequalities in such outcomes, or we consider it more important not to interfere with individual autonomy in this field.

In view of the reasons for the existence of a private sphere, a few suggestions can be made about outcomes that can reasonably be put into the private cluster. First, due to the first four arguments, the life-style and consumption of individuals should be a private matter, although, of course, Mill's proviso should also apply to circumscribe the effects of externalities. Second, apart from considerations of mental health and education level, I would suggest putting all subjective and intellectual outcomes into the private sphere. This implies respect for basic liberties, but it also concerns the formation and revision of preferences and goals, and their degree of satisfaction. Third, as developed above, respect for the person should preclude any public scrutiny over natural physical characteristics of persons.

Notice that even if most subjective outcomes remain private, that

²² By contrast, related consequences of such handicaps may call for social help as soon as social outcomes are affected. Loneliness and illiteracy demand some intervention, but not ugliness and stupidity which may cause them.

does not mean that subjective problems will not elicit social help. They will do so, however, only if they have consequences for social outcomes. For instance, if cheerfulness is deemed a private matter, the person who is naturally sad, but otherwise leads a perfectly normal life, will not be compensated with any social resources. Similarly, the naturally cheerful person would not be penalized for this trait of personality. But if their social outcomes (job, income, family life, for instance) are affected, then social institutions may intervene. In contrast, since none of them has chosen to be sad or joyful, equal opportunity would immediately subsidize the former and tax the latter.

The case of expensive tastes can be dealt with in a similar way. It is not because Louis has chosen to cultivate a taste for plover's eggs and ancient claret²³ that he will not receive a subsidy, but rather because he has been given by the institutions, a personal autonomy over his tastes and the satisfaction of these tastes. The reasons why he develops such tastes are not to be scrutinized, unless they interfere with social outcomes (for instance, not to be threatened or manipulated would probably be a social outcome). It may also be decided that some particular tastes (for example, for alcohol, tobacco) would belong to $\mathcal{O}_1$ and would trigger some intervention and help (probably not a consumption subsidy), independently of the degree of choice involved in such tastes. The problem of adaptive tastes can be addressed in a similar way.

Another suggestion can be made, now concerning social outcomes. A very important individual outcome indeed seems to be respect for the private sphere, as has been argued above, and it would fall under the responsibility of social institutions to guarantee such respect. Notice that the exact content of this particular 'social outcome' would depend on the definition of the private sphere, which can vary to some extent in different societies.

Equal social outcome is then a principle which potentially gets rid of most of the informational problems implied by equal opportunity. The reason is that outcomes are much more easily observed than causal factors. Moreover, all of the relevant social outcomes could probably be chosen to be easily observable, especially if the most subjective outcomes (satisfaction, happiness) are put into the private sphere. No serious ethical limitation seems to be entailed by such an observability condition. Some problems of interpersonal comparison might however arise: how can we compare the career achievements of a plumber and of a lawyer? But I would claim that such problems are less tricky and more sociologically relevant than the factor analysis and welfare comparisons required by factor-selective egalitarianism.

²³ See Dworkin 1981a, p. 229; this famous example is due to Arrow.

8. FINAL REMARKS

The equal social outcome view is, in brief, a combination of Rawls's and Sen's theories. With Sen and against Rawls, it focuses on functionings and not on goods, because ability differentials are an important source of unjust inequalities amongst individuals. But with Rawls and against Sen, it argues that social institutions should not take care of the fate of individuals in a comprehensive way.²⁴ Only the distribution of social outcomes, which might also be named 'primary functionings' in this perspective, matters from the standpoint of social justice. Another essential difference with Sen is that functionings are the relevant variables, instead of capabilities, which imply an idea of moral responsibility.

As an illustration, an application of the equal social outcome approach which would seem plausible to me for western societies, would select only six individual outcomes: respect for the private sphere (denoted s_i for each individual i , hereafter), health (h_i), education and information (e_i), wealth (we_i), collective decision-making power (p_i), social integration (avoiding loneliness, si_i). Applying the maximin criterion to an index of these six individual outcomes, that is,

$$\text{Max} \min_i \varphi(s_i, h_i, e_i, we_i, p_i, si_i)$$

would be a tractable framework for egalitarian policies. This is just an example, and of course many details have to be worked out concerning the measurement of these six variables, and the shape of the index φ .

I will conclude with two general remarks. First, the definition of the variable s_i , respect for the private sphere, can follow two very different approaches. The first one, adopted for instance by J. S. Mill, considers individual autonomy as isolation and independence of the individual from social influences and interventions. This approach is relevant as far as specific institutions (such as the state) are concerned, and the usual definition of basic liberties can rely on this view without any problem. But in a broader sense of individual autonomy, this approach is quite naive, as pointed out by Schoeman (1992), because individual life cannot be lived in isolation from a social context, and for an individual, increasing one's degree of isolation is more often impoverishing than liberating. An alternative view of individual autonomy can be built on the fact that belonging to various independent groups, in various spheres of life, is a basic guarantee against excessive dependency on a particular social group. Enhancing respect for the private sphere may then consist in encouraging multiple social integration rather than in hindering collective

²⁴ In Sen's theory, subjective satisfaction is for instance an important functioning to be taken into account.

institutions. In addition to these considerations, Scanlon's 'quality of choice' and individual self-expression can also be observed and fostered in many ways by various social institutions.

The last point is that, as can be seen in the above example with six social outcomes, it may be impossible to implement a precise distribution of some social outcomes (such as education, wealth, power) without seriously reducing individual freedom of choice (of life-style, for instance). One might think that this problem requires the introduction of choice sets or capabilities, instead of functionings. But then we are back into the morass of free choice and of the metaphysics of moral responsibility. I do not, however, believe that this is necessary. Indeed, if there is a trade-off between the distribution of some social outcomes and the respect of the private sphere, such a trade-off can be directly reflected in the index φ or any similar tool, and the implementation of a distribution of individual values of φ is simply a matter of economic analysis, similar to what is done in the theory of optimal taxation. To admit such a trade-off seems more sensible than to consider that differences of individual levels in some basic functionings do not matter provided they reflect choices. I would rather say that such differences always matter, but that they may be tolerated when respect for the private sphere is at stake.

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